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Q In UK, Parliamentary Sovereignty

allow amendment without judicial interference

Discuss whether India's Constitutional framework
strikes balance between Parliamentary Sovereignty
and Constitutional Supremacy 38 Marks

Ans Parliament Sovereignty refers to
supreme power of Parliament and
there are no legal restriction on authority
authority

Feature of
Parliamentary
Sovereignty

- Supreme Legal authority
- Non judicial intervention
- No Written Constitution
- Legislative Supremacy

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<u>Comparison of Indian and UK</u>		
<u>Parliamentary</u>		
	<u>Indian</u>	<u>UK</u>
<u>Constitution</u> →	Written	Unwritten
<u>Amendment</u> →	Rigid + flexible	flexible
<u>separation of power</u> →	well defined	Not defined
<u>Judiciary</u> → Intervention	Allowed	Not Allowed
<u>Sovereignty</u> →	Limited	Absolute
<u>Supreme</u> →	Constitution	Parliament

Indian Constitution has strike balance
between Parliamentary Sovereignty
and Constitutional Supremacy.

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Nature of Indian Constitution.

The Constitution maker adopted middle course between American system of judicial supremacy and British parliamentary sovereignty.

Parameters to check Parliamentary Sovereignty

1) Written Constitution

Put limitation on amending power of parliament in India.

2) Federal Structure

Division of power horizontally and vertically between Centre & state.
eg. Centre, state list

iii) Independent Judiciary

declare any law passed by parliament
Void if violate Constitutional provision

iv) Separation of Power

It is American Concept where
power divided among 3 organ
to maintain check & balance

v) Judicial Review

Basic Structure in Kesavananda Case
Limited amending power of Parliament

Parameters to hold Constitutional
Supremacy.

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1) Written and Rigid Constitution

Rigidity protect basic philosophy of
Constitution

2)

Impeachment of Judges

• Parliament can impeach judges
of SC, HC for ~~violation~~ proved misbehaviour

3) Rule of Law

prevent ~~arbitrary~~ - from arbitrary
legislative, executive action.

Indian Constitution has adopted parlia-
mentary govt maintaining balance.

Professor KT Shah noted parliamentary
govt connect Executive, Legislature,
Judiciary & maintain balance of
power among organs